

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
DAVILLE CAMPBELL,

SUMMONS

Plaintiff,

-against-

THE CITY OF NEW YORK, DET. GREGORY
TRIMARCHI and P.O. WILLIAM SCHUMACHER,

Defendants.

-----X
TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve your answer on Plaintiff's attorney within 20 days after service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York). If you fail to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Plaintiff designates Kings County as the venue for trial based on the location of the incident, to wit: near the intersection of Livonia Ave. and Miller Ave., Brooklyn, NY.

Dated: Forest Hills, NY
May 15, 2024

Yours, etc.,



Law Office of Michael Dreishpoon, P.C.
Michael Dreishpoon, Esq.
Attorneys for Plaintiff
DAVILLE CAMPBELL
118-35 Queens Blvd., Ste. 1500
Forest Hills, NY 11375
718-793-5555

DEFENDANTS' ADDRESSES:

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

DET. GREGORY TRIMARCHI
1 Police Plaza
New York, NY 10038

P.O. WILLIAM SCHUMACHER
1 Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
DAVILLE CAMPBELL,

Plaintiff,

**VERIFIED
COMPLAINT**

-against-

THE CITY OF NEW YORK, DET. GREGORY
TRIMARCHI and P.O. WILLIAM SCHUMACHER,

Defendants.

-----X

Plaintiff, DAVILLE CAMPBELL, by his attorneys, the Law Office of Michael
Dreishpoon, P.C., complaining of the defendants, alleges, upon information and belief, as
follows:

1. At all times herein mentioned, Plaintiff, DAVILLE CAMPBELL, was and
remains a resident of Queens County, NY.
2. At all times herein mentioned, Defendant, THE CITY OF NEW YORK, was and
remains a domestic municipal corporation duly organized and existing under, and by virtue of,
the laws of the State of New York.
3. At all times herein mentioned, Defendant, DET. GREGORY TRIMARCHI, was
an employee of the New York City Police Department (hereinafter "the NYPD").
4. At all times herein mentioned, Defendant, P.O. WILLIAM SCHUMACHER, was
an employee of the NYPD.
5. At all times herein mentioned, Defendant, THE CITY OF NEW YORK,
maintained, managed, supervised, and controlled the NYPD as part of, and in conjunction with,
its municipal functions.
6. At all times herein mentioned, Defendant, THE CITY OF NEW YORK,
employed and supervised DET. GREGORY TRIMARCHI and P.O. WILLIAM

SCHUMACHER (hereinafter “the individual defendants”).

7. The individual defendants are graduates of the NYPD’s Police Academy.

8. At all times herein mentioned, Defendant, THE CITY OF NEW YORK, had the duty to competently and sufficiently train the individual defendants within the Police Academy and at the command, precinct, and patrol levels, and to conform their conduct to a standard for the protection of individuals such as Plaintiff against the unreasonable risk of harm by conducting themselves in such a manner so as to not intentionally, wantonly, and/or negligently injure citizens such as Plaintiff.

9. At all times herein mentioned, Defendant, THE CITY OF NEW YORK, had the duty to competently and sufficiently train the individual defendants within the Police Academy and at the command, precinct, and patrol levels, in the protection of Plaintiff’s rights under the Constitution of the United States of America.

10. At all times herein mentioned, the individual defendants were acting in their capacity as employees, agents, and/or servants of Defendant, THE CITY OF NEW YORK.

11. At all times herein mentioned, Defendants were acting under the color of state law and their acts constituted “state action.”

12. Plaintiff served a Notice of Claim on December 4, 2023 and testified at a General Municipal Law § 50-h hearing on February 29, 2024. More than thirty days have elapsed since the claims upon which this action is founded were presented for adjustment to the comptroller, which has neglected or refused to make an adjustment or payment thereof.

FIRST CAUSE OF ACTION:
EXCESSIVE FORCE UNDER 42 U.S.C.
§ 1983 & NEW YORK STATE LAW

13. In the afternoon of November 21, 2023, Plaintiff was sitting in the front seat of a 2006 Chevrolet automobile bearing Pennsylvania license plate number FLD7364.

14. The vehicle was legally parked on the left-hand side of Miller Ave. near Livonia Ave. in the East New York section of Brooklyn.

15. Plaintiff's brother was in the driver's seat and their cousin was in the back seat.

16. At approximately 3:30 P.M., Plaintiff noticed a Nissan automobile pass the vehicle he was in and make a right turn onto Livonia Ave.

17. Shortly thereafter the Nissan stopped on Miller Ave. a few car lengths behind Plaintiff's vehicle.

18. A male exited the vehicle and walked toward Plaintiff's vehicle. He stopped a few car lengths away and pointed his cell phone at Plaintiff's vehicle.

19. Eventually the male entered the Nissan and drove away.

20. Soon thereafter the Nissan returned and stopped alongside Plaintiff's vehicle. Someone inside the Nissan activated blue and red flashing lights.

21. At that point in time, Plaintiff realized that the Nissan was an unmarked police car and the driver was a plain-clothed police officer.

22. Approximately three police officers exited the Nissan.

23. Soon thereafter marked police vehicles came to the scene.

24. Eventually a male, white officer wearing a red and back checkered shirt and an NYPD bullet-proof vest knocked on the window.

25. Soon thereafter this same officer utilized some type of tool to break the passenger side front window.

26. Some of the glass from the window struck Plaintiff in the eye.

27. A uniformed police officer was standing next to this officer with his gun drawn and pointed at Plaintiff.

28. The officer opened up the door and pulled Plaintiff out.

29. Plaintiff was hand-cuffed and placed under arrest.

30. Upon information and belief, DET. GREGORY TRIMARCHI and P.O.

WILLIAM SCHUMACHER were among the officers who broke the window, pulled Plaintiff out of the vehicle and hand-cuffed Plaintiff at the time and place aforesaid, causing Plaintiff to sustain physical injuries.

31. On November 23, 2023, Plaintiff went to Jamaica Hospital Medical Center complaining of injuries to his right shoulder, right knee, low back and wrists.

32. Approximately one and a half weeks later, Plaintiff went to a doctor due to irritation in his right eye.

33. At all times herein mentioned, Defendants owed Plaintiff a special duty beyond what was owed to the public generally, and breached this special duty by committing the acts and omissions described herein.

34. As a direct and proximate result of Defendants' aforementioned excessive use of force, Plaintiff suffered severe bodily injuries, was rendered sick, sore, lame and disabled, and was forced to spend diverse sums of money in seeking medical care.

35. As a direct and proximate result of these injuries, Plaintiff suffered, and will continue to suffer, continuous pain, suffering, anguish, emotional harm, distress and embarrassment.

36. Defendants' aforementioned actions were done without probable cause, just cause, reasonable grounds, or provocation, and placed Plaintiff in imminent fear of unlawful touching.

37. In addition, DET. GREGORY TRIMARCHI and P.O. WILLIAM SCHUMACHER and other officers actually touched Plaintiff in a hostile, aggressive, excessive, unlawful, and offensive manner without Plaintiff's consent and with the intention of harmful or offensive bodily contact.

38. Defendants' conduct constituted assault and battery, was excessive, unwarranted, unnecessary, and violent, and violated Plaintiff's rights under the Constitution of the United States and the laws of the State of New York.

SECOND CAUSE OF ACTION:
FALSE ARREST UNDER 42 U.S.C.
§ 1983 & NEW YORK STATE LAW

39. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth herein.

40. DET. GREGORY TRIMARCHI and P.O. WILLIAM SCHUMACHER were among the officers who broke the window, yanked Plaintiff out of the vehicle and hand-cuffed Plaintiff.

41. At the time and place aforesaid, Defendants, their agents, servants, and/or employees wrongfully and falsely apprehended and detained Plaintiff without any right or grounds therefor, without any warrant or other legal process, without authority of the law, and without any reasonable cause or belief that Plaintiff was guilty of having committed any crimes.

42. Defendants, their agents, servants and/or employees, wrongfully, unlawfully, and without probable or reasonable cause, violently apprehended, handcuffed, restrained, and detained Plaintiff.

43. In addition, with full force of arms, Defendants laid hold of and compelled Plaintiff to be detained at the 75th Precinct.

44. Plaintiff was wholly innocent of any criminal charges; nevertheless, he was forced by Defendants to submit to the aforesaid apprehension and detainment entirely against his will.

45. Defendants, their agents, servants, and/or employees, as set forth above, intended to confine Plaintiff, Plaintiff was conscious of the confinement, Plaintiff did not consent to the confinement, and the confinement was not otherwise privileged.

46. Defendants falsely accused Plaintiff of Obstructing Governmental Administration

in the Second Degree and Resisting Arrest.

47. Plaintiff was arraigned on November 22, 2023 (Dkt. # CR-042967-23KN), he was released on his own recognizance and the case was adjourned to January 18, 2024 in courtroom AP-3.

48. On January 18, 2024, the case was adjourned to February 27, 2024.

49. On February 27, 2024, all of the charges were dismissed and sealed. A true and accurate copy of the pertinent section of the Certificate of Disposition is depicted below:

Certificate # U-00072721.8

Page 1 of 1

KINGS CRIMINAL COURT
120 Schermerhorn St., Brooklyn, NY 11201
Phone: (646) 386-4800 Fax: (718) 643-7233
Court ORI: NY0730331

NO FEE
Non-Public
Version

The People of the State of New York
vs.
Davielle Campbell

SEALED

Certificate of Disposition
Docket Number: CR-042967-23KN

pursuant to Section 160.50 of the CPL

Defendant DOB: 04/20/1987

CITN: 70515127Z
NYSID: 02094824M

Arrest Date: 11/21/2023 Arraignment Date: 11/22/2023

THIS IS TO CERTIFY that the undersigned has examined the files of the Kings Criminal Court concerning the above entitled matter and finds the following:

Count #	Charge	Charge Weight	Disposition	Disposition Date
1	PL 205.30 AM Resisting Arrest **SEALED 160.50**	AM	Dismissed (Speedy Trial (CPL 170.30 (1)(e)), Sealed 160.50)	02/27/2024
2	PL 195.05 AM Obstruct Government Admin-2nd **SEALED 160.50**	AM	Dismissed (Speedy Trial (CPL 170.30 (1)(e)), Sealed 160.50)	02/27/2024

Charge Weight Key: I=Infraction, V=Violation, AM=Class A Misdemeanor, UM=Unclassified Misdemeanor, AF, BF, CF, DF=Class Felony

Dated: February 28, 2024

Chief Clerk/Clerk of the Court

50. By reason of the foregoing false imprisonment, Plaintiff was subjected to indignity, humiliation, ridicule, and loss of liberty.

THIRD CAUSE OF ACTION: **NEGLIGENT HIRING/TRAINING/RETENTION**

51. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth herein.

52. Defendant, THE CITY OF NEW YORK, was negligent in its operation, management, hiring, supervision, retention, and control of its police department, as well as in the training and conduct of the individual defendants, as well as the other officers involved.

53. As a result of the above-mentioned negligence, NYPD officers, including the individual defendants, assaulted, battered, and falsely arrested Plaintiff.

54. The actions of the individual defendants complained of were part of the custom, practice, usage, regulation, and/or direction of Defendant, THE CITY OF NEW YORK.

55. Defendant, THE CITY OF NEW YORK, failed to properly screen, hire, train, supervise, and discipline their employees, including the individual defendants complained of, with regard to their propensity for, inter alia, the excessive use of force.

56. This failure led to the individual defendants assaulting, battering, and falsely arresting Plaintiff at the time and place aforesaid in the manner aforesaid.

57. Plaintiff's damages on each of the foregoing causes of action exceed the jurisdictional limits of the lower courts of the State of New York.

WHEREFORE, Plaintiff demands judgment in an amount currently believed to exceed the jurisdictional limits of all lower courts which otherwise would have jurisdiction over this matter on each Cause of Action, together with the costs and disbursements of this action.

Dated: Forest Hills, NY
May 15, 2024

Yours, etc.,



Law Office of Michael Dreishpoon, P.C.
Attorneys for Plaintiff
DAVILLE CAMPBELL
118-35 Queens Blvd., Ste. 1500
Forest Hills, NY 11375
718-793-5555

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)

ss.:

COUNTY OF QUEENS)

I, DAVILLE CAMPBELL, affirm this 15th day of May, 2024, under penalties of perjury under the law of New York, which may include fine or imprisonment, that the following is true, and I understand that this document may be filed in an action or proceeding in a court of law.

(1) I am the plaintiff in the within action.

(2) I have read the foregoing Verified Complaint and know that the contents thereof are true and accurate.

(3) As to those matters therein stated to be alleged upon information and belief, I believe them to be true.

DocuSigned by:



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DAVILLE CAMPBELL